

Tentative Rulings
May 14, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person; CourtCall (888-882-6878 or www.courtcall.com); or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests further argument. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Rodriguez Lopez v. Shepherd, et al*, Case No. CIVVS2504430
Defendant Shephard's Motion for Leave to File a Cross-Complaint
5/14/26, 9:00 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion. The proposed Cross-Complaint will be filed within the next 20 days.

A motion for leave to amend is directed to the sound discretion of the Court. (Code Civ. Proc., § 473(a)(1).) Policy favors resolution on the merits; thus, the court will usually liberally grant leave to amend a pleading. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939.) If a motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend; and, where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error, but an abuse of discretion. (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Here, movant alleges the proposed Cross-Complaint was a prior filing that appears to have been improperly rejected. Alternatively, he sets forth grounds in that the prior iteration did not name the plaintiff as cross-defendant and that he believed in good faith that the deadline to timely file had not expired. Further, he alleges delay was necessary as he had to comply with the Tort Claims Act before he could file the proposed cross-complaint, which names the City of Hesperia as a cross-defendant. No opposition or assertion of prejudice is submitted.

Given the general policy to liberally grant leave to amend, the Court would allow.
